



CHAPTER 46

An Act to revise the statute law by repealing enactments which have ceased to be in force or have become unnecessary and re-enacting a provision of certain Acts which are otherwise spent.

[23rd July, 1958]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1. The Acts specified in the First Schedule to this Act (being Repeal of Acts which are obsolete or spent or have been superseded by obsolete, &c., other enactments) are hereby repealed. Acts.

2. The Acts specified in the first and second columns of the Second Schedule to this Act (which to the extent specified in the third column of that Schedule are obsolete or spent, or have become unnecessary) are hereby repealed to that extent. Repeal of obsolete, &c., provisions concerning the Crown Estate and public buildings.

3. The Acts specified in the first and second columns of the Third Schedule to this Act shall cease to have effect in so far as they entitle persons to plead the general issue in civil proceedings and are accordingly hereby repealed to the extent specified in the third column of that Schedule. Repeal of provisions as to plea of general issue in civil proceedings.

Re-enactment
of provision
of Government
War
Obligations
Acts, 1914 to
1919, as to
payment of
certain
pensions, and
repeal of
remaining
provisions
thereof.

4.—(1) There shall be paid out of moneys provided by Parliament or, if those moneys are insufficient, there shall be charged on and paid out of the Consolidated Fund of the United Kingdom, such sums as are required for the purpose of fulfilling any obligations incurred before the fifteenth day of August, nineteen hundred and nineteen, by the Government of His late Majesty King George the Fifth in connection with the 1914–1918 war in respect of payments for compensation in respect of persons killed or injured on any merchant ship or fishing vessel.

(2) The Government War Obligations Acts, 1914 to 1919 (whose provisions are spent with the exception of that re-enacted by the foregoing subsection) are hereby repealed.

Saving for
powers of
Parliament
of Northern
Ireland.
10 & 11 Geo. 5.
c. 20.

5. In so far as this Act relates to a matter with respect to which the Parliament of Northern Ireland has power to make laws it shall, for the purposes of section six of the Government of Ireland Act, 1920, be deemed to have been passed before the appointed day within the meaning of that section.

Short title.

6. This Act may be cited as the Statute Law Revision Act, 1958.

SCHEDULES

FIRST SCHEDULE

Section 1.

OBSOLETE, &C., ACTS REPEALED

Session and Chapter	Title or Short Title, or Subject Matter
—	Ne Rector prosternat Arbores in Cemiterio.
5 Edw. 3. c. 5 ...	Penalty for selling ware after close of fair.
4 Hen. 7. c. 20 ...	The Collusive Actions Act, 1488.
34 & 35 Hen. 8. c. 2... ..	An Acte concerning Collectoures and Recey- voures.
34 & 35 Hen. 8. c. 8 ...	The Herbalists Act, 1542.
34 & 35 Hen. 8. c. 9 ...	An Acte for the Preservacon of the Ryver of Severne.
1 Jac. 1. c. 5	An Act to prevent the overcharge of the People by Stewards of Courte Leetes and Courte Barons.
21 Jac. 1. c. 14 ...	The Intrusions Act, 1623.
5 Geo. 1. c. 11 ...	The Adulteration of Coffee Act, 1718.
11 Geo. 1. c. 30 ...	The Adulteration of Tea and Coffee Act, 1724.
4 Geo. 2. c. 14 ...	The Adulteration of Tea Act, 1730.
12 Geo. 3. c. 45 ...	The Traffic Regulation (Scotland) Act, 1772.
17 Geo. 3. c. 29 ...	The Adulteration of Tea Act, 1776.
49 Geo. 3. c. 32 ...	The Pension Duties Act, 1809.
49 Geo. 3. c. 110 ...	The Pension Duties Act (No. 2) Act, 1809.
50 Geo. 3. c. 56 ...	The Pension Duties Act, 1810.
52 Geo. 3. c. 56 ...	The Pension Duties Act, 1812.
52 Geo. 3. c. 144 ...	The Members of Parliament (Bankruptcy) Act, 1812.
59 Geo. 3. c. 12 ...	The Poor Relief Act, 1819.
1 Geo. 4. c. 4 ...	The Stage Coaches (Scotland) Act, 1820.
6 Geo. 4. c. 9... ..	The Duties on Offices Act, 1825.
6 Geo. 4. c. 69 ...	The Transportation Act, 1825.
7 Geo. 4. c. 46 ...	The Country Bankers Act, 1826.
6 & 7 Will. 4. c. 97 ...	The Duties on Offices and Pensions Act, 1836.
9 & 10 Vict. c. 101 ...	The Public Money Drainage Act, 1846.
10 & 11 Vict. c. 11 ...	The Public Money Drainage Act, 1847.
11 & 12 Vict. c. 101 ...	The Lock-up Houses Act, 1848.
11 & 12 Vict. c. 119 ...	The Public Money Drainage Act, 1848.
12 & 13 Vict. c. 8 ...	The Poor Law (Overseers) Act, 1849.
13 & 14 Vict. c. 31 ...	The Public Money Drainage Act, 1850.
14 & 15 Vict. c. 81 ...	The Lunatics Removal (India) Act, 1851.
19 & 20 Vict. c. 9 ...	The Public Money Drainage Act, 1856.
21 & 22 Vict. c. 52 ...	The Inferior Courts Officers (Ireland) Act, 1858.
24 & 25 Vict. c. 31 ...	The Sierra Leone Offences Act, 1861.
25 & 26 Vict. c. 65 ...	The Jurisdiction in Homicides Act, 1862.
25 & 26 Vict. c. 67 ...	The Declaration of Title Act, 1862.
26 & 27 Vict. c. 119 ...	The Exhibition Medals Act, 1863.
28 & 29 Vict. c. 78 ...	The Mortgage Debenture Act, 1865.
28 & 29 Vict. c. 106 ...	The Colonial Docks Loans Act, 1865.
29 & 30 Vict. c. 63 ...	The Courts of Justice Act, 1866.

1st SCH.
—cont.

Session and Chapter	Title or Short Title, or Subject Matter
33 & 34 Vict. c. 20 ...	The Mortgage Debenture (Amendment) Act, 1870.
34 & 35 Vict. c. 8 ...	The West African Offences Act, 1871.
39 & 40 Vict. c. 10 ...	The Royal Titles Act, 1876.
40 & 41 Vict. c. 10 ...	The Customs and Inland Revenue Amendment Act, 1877.
42 & 43 Vict. c. 59 ...	The Civil Procedure Acts Repeal Act, 1879.
1 Edw. 7. c. 15 ...	The Royal Titles Act, 1901.
4 & 5 Geo. 5. c. 38 ...	The East African Protectorates (Loans) Act, 1914.
9 & 10 Geo. 5. c. 43...	The Government of the Soudan Loan Act, 1919.
10 & 11 Geo. 5. c. 76...	The Agriculture Act, 1920.
12 & 13 Geo. 5. c. 15...	The Government of the Soudan Loan (Amendment) Act, 1922.
12 & 13 Geo. 5. c. 26...	The Anglo-Persian Oil Company (Payment of Calls) Act, 1922.
15 & 16 Geo. 5. c. 43...	The Former Enemy Aliens (Disabilities Removal) Act, 1925.
18 & 19 Geo. 5. c. 37...	The Post Office and Telegraph (Money) Act, 1928.
21 & 22 Geo. 5. c. 20...	The Post Office and Telegraph (Money) Act, 1931.
2 & 3 Geo. 6. c. 6 ...	The Czechoslovakia (Financial Assistance) Act, 1939.
3 & 4 Geo. 6. c. 24 ...	The National Service (Channel Islands) Act, 1940.

Section 2.

SECOND SCHEDULE

OBSOLETE, &C., PROVISIONS CONCERNING THE CROWN ESTATE
AND PUBLIC BUILDINGS REPEALED*Crown Estate Provisions*

Session and Chapter	Short Title	Extent of Repeal
10 Geo. 4. c. 50	The Crown Lands Act, 1829.	Sections five, thirty-nine, fifty-three to fifty-six, ninety, one hundred and six, one hundred and twenty-eight and one hundred and twenty-nine.
2 & 3 Will. 4. c. 1.	The Crown Lands Act, 1832.	Sections one and nine.
8 & 9 Vict. c. 99.	The Crown Lands Act, 1845.	Sections nine, eleven, twelve and thirteen.
11 & 12 Vict. c. 102.	The Crown Lands Act, 1848.	Sections six and seven.
14 & 15 Vict. c. 42.	The Crown Lands Act, 1851.	Sections one and two.
29 & 30 Vict. c. 62.	The Crown Lands Act, 1866.	Section twenty-nine.
13 & 14 Geo. 5. c. 21.	The Forestry (Transfer of Woods) Act, 1923.	Section four.

*Public Buildings Provisions*2ND SCH.
—cont.

Session and Chapter	Short Title	Extent of Repeal
60 & 61 Vict. c. 27.	The Public Offices (Whitehall Site) Act, 1897.	Section four.
61 & 62 Vict. c. 5.	The Public Buildings Expenses Act, 1898.	The whole Act.
3 & 4 Geo. 5. c. 14.	The Public Buildings Expenses Act, 1913.	The whole Act.

THIRD SCHEDULE

Section 3.

ACTS REPEALED SO FAR AS ENTITLING PERSONS TO PLEAD
GENERAL ISSUE IN CIVIL PROCEEDINGS

Session and Chapter	Title or Short Title	Extent of Repeal
1 Car. 1. c. 1...	The Sunday Observance Act, 1625.	The words from "and that if any man" to "evidence".
3 Car. 1. c. 2...	An Act for the further reformation of sondry abuses committed on the Lord's Day commonlie called Sondag.	The second proviso.
11 Geo. 2. c. 19	The Distress for Rent Act, 1737.	Section twenty-one.
25 Geo. 2. c. 8 (Ir.).	The Apprentices Act (Ireland), 1751.	Section eight.
13 Geo. 3. c. 78	An Act to explain, amend and reduce into one Act of Parliament the Statutes now in being for the Amendment and Preservation of the Public Highways within that part of Great Britain called England; and for other purposes.	In section eighty-one, the words from "the defendant or defendants in every such action" to "have been so done, or".
14 Geo. 3. c. 78	The Fires Prevention (Metropolis) Act, 1774.	In section eighty-six, the words from "And in such case" to "to be had".
42 Geo. 3. c. 119.	The Gaming Act, 1802 ...	Section seven.
1 & 2 Will. 4. c. 32.	The Game Act, 1831... ..	In section forty-six, the words "and may be given in evidence under the general issue".
3 & 4 Vict. c. 9	The Parliamentary Papers Act, 1840.	In section three, the words "under the general issue".

3RD SCH.
—cont.

Session and Chapter	Title or Short Title	Extent of Repeal
6 & 7 Vict. c. 40.	The Hosiery Act, 1843 ...	In section thirty-one, the words "in any such action", where first occurring, and the words "may plead the general issue, or".
7 & 8 Vict. c. 22.	The Gold and Silver Wares Act, 1844.	In section thirteen, the words from "and the defendant" to "had thereupon".

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